

Smt. Uma Chauhan v. State of U.P. And 2 Others

High Court of Judicature at Allahabad · Single Judge · 28 July 2025 · 2025:AHC:127645 · Criminal Revision No. 3431 of 2023 · **Criminal revision allowed; discharge-rejection dated 14.11.2022 and the entire Section 420 complaint quashed**

HEADNOTE

A tenant in possession under a rent agreement that itself provides for payment of electricity tax on an additional meter is entitled to a connection in the tenanted premises under Clause 4.4 and Annexure 4.2 of the U.P. Electricity Supply Code, 2005. Following Seema Mansoor, the occupier has a legal right to obtain supply and the licensee cannot refuse solely for want of the owner's consent; installation of an additional meter by the electricity department is not cheating under Section 420 IPC. The Supply Code is a self-sufficient code. Where the landlady has initiated no Code proceeding for disconnection or removal of that meter, and in the ejectment suit she pleads non-payment of bills on the additional meter while the criminal complaint alleges fraudulent installation, the Section 420 prosecution is a civil dispute dragged into criminal litigation and an abuse of process. The order refusing discharge under Section 245(2) Cr.P.C. and the entire complaint are quashed.

FACTUAL SUMMARY

Smt. Uma Chauhan entered a registered agreement to sell dated 8 July 2016 with Smt. Priya Goel for a house at Rs 38,50,000 and paid Rs 5,00,000 as earnest money. A rent agreement was also executed making her a tenant; the Court recorded that clause 4 required the tenant to pay water and electricity tax as per the additional meter. An ejectment suit (SCC Suit No. 1 of 2017) for default of rent remained pending.

Yogesh Kumar Goel, who is not the owner, lodged a complaint (originally under Section 156(3) Cr.P.C.) alleging that the tenant had forcibly occupied a third floor and, by fraud and forgery, got an additional electricity meter installed in her name. She was summoned under Section 420 IPC on 22 December 2018. After a Section 482 application was disposed of on 10 August 2022 with liberty to seek discharge, her Section 245(2) discharge application was rejected on 14 November 2022 in Complaint Case No. 5385 of 2021. She challenged that order and the complaint.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Tenant/occupier entitled to a connection on occupancy proof and indemnity; additional meter in tenanted premises is not fraud

QUESTION

Where a tenant is in possession under a rent agreement that provides for electricity tax on an additional meter, can installation of that meter in the tenant's name be treated as fraud, or does Clause 4.4 read with Annexure 4.2 entitle the occupier to the connection?

HOLDING

The occupier is entitled to the connection. Clause 4.4 requires proof of occupancy (including a latest rent-paid receipt or valid lease) and, where the intending consumer is not the owner and cannot obtain consent, an Annexure 4.2 indemnity bond. Following Seema Mansoor, a tenant has a legal right to obtain electricity connection and the licensee cannot refuse solely for want of the owner's consent. No tenant can enjoy the premises without electricity. The additional meter was installed by the electricity department under the Act and the Code. In view of that Division Bench law, it cannot be said that the revisionist obtained the connection by playing fraud. ¶ 17, 19-20, 24

QUALIFIER

The Court treated as admitted that the rent agreement provided for water and electricity tax as per the additional meter, and that the landlady had not herself got an additional meter installed after letting.

FLAG The Court quoted Clause 4.4 and Annexure 4.2 in full and referred to the Indian Electricity Act and the U.P. Electricity Supply Code (Thirteenth Amendment), 2018 without numbering an Act section. The Hindi extract labelled as

INTERPLAY · UP-2005::4.4

Supply Code is self-sufficient; s.420 complaint for a tenant's additional meter is abuse of process where no Code proceeding for removal is taken and civil/criminal pleas contradict

QUESTION

May a landlady (or a complainant who is not the owner) prosecute the tenant under Section 420 IPC for installing an additional electricity meter, when she has not invoked the Supply Code for disconnection or removal and in the ejectment suit she pleads non-payment of bills on that meter?

HOLDING

No. The Code is a self-sufficient code. No proceeding was initiated by the landlady under it for disconnection or removal of the additional meter on the ground of fraud. Once the rent agreement itself provides that the tenant shall pay the electricity bill as per the additional meter, it does not stand to reason that the lessee played fraud in getting that meter installed. The civil plea of unpaid additional-meter bills and the criminal plea of fraudulent installation are contradictory. Dishonest intention from the inception, required for Section 420 IPC (N. Raghvender), is not made out: the revisionist entered possession under the rent deed and was entitled to a connection. The complaint was engineered to gain mileage in the pending ejectment suit, was initiated by Yogesh Kumar Goel who is not the owner (the Section 200 statement being that of Smt. Priya Goel, who is not a party), and is malicious and an abuse of process. Revision allowed; the 14.11.2022 discharge-rejection and the entire complaint are quashed. ¶ 17-18, 20-27

PRINCIPLE TAGS

occupier-entitled-to-connection-on-indemnity-bond Applied in a criminal-revision setting: a tenant in occupation is entitled to an electricity connection under Clause 4.4 and Annexure 4.2; getting an additional meter in the tenanted premises through the electricity department is not Section 420 fraud. Same cluster as SCJ-115 (Seema Mansoor), SCJ-006, SCJ-212, SCJ-265. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.* [80741415]. ¶ 17, 19-20, 24

clause-4.4-occupant-connection-on-indemnity-bond Clause 4.4 and Annexure 4.2 are quoted in full. Occupancy proof (rent receipt/lease) plus the indemnity-bond route where owner's consent is unavailable support a tenant's additional meter. The Code is treated as the self-sufficient forum for any landlady challenge to that connection; a parallel Section 420 complaint is quashed. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.* [80741415]. ¶ 17, 20

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF SCC SUIT NO. 1 OF 2017 (EJECTMENT, DEFAULT OF RENT, UNPAID ELECTRICITY BILLS AS A CIVIL CLAIM)

Recorded as pending. The Court used the landlady's civil plea of unpaid additional-meter bills only to show contradiction with the criminal complaint, and did not try the ejectment suit. ¶ 10, 17, 20

NOT DECIDED — WHETHER THE TENANT OCCUPIED A THIRD FLOOR SO AS TO ATTRACT CIVIL DAMAGES

Alleged in the complaint. The Court noted that the ejectment plaint claimed no damages for illegal occupation of the third floor; it did not try that occupation as a civil issue. ¶ 11-12, 20

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Lalit Chaturvedi v. State of U.P.</i> 2024 SCC OnLine SC 171 Supreme Court	There is a growing tendency to drag civil disputes into criminal litigation, which the Court must curb.	Relied on by the revisionist. The Court did not name the case in its own reasoning, but quashed on the finding that a civil landlord-tenant dispute had been engineered as a Section 420 complaint. ¶ 12, 18, 20, 24	Petitioner	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Rajiv Thapar v. Madan Lal Kapoor</i> (2013) 3 SCC 330 Supreme Court	Paragraph 30 sets four steps for quashment under Section 482 Cr.P.C.: sterling material of the accused; that material ruling out the accusations; it being unrefuted or not justifiably refutable; and trial being an abuse of process. If all are affirmative, the High Court should quash.	Relied on by the revisionist (para 30 extracted) for the proposition that, while hearing a challenge to refusal of discharge, the High Court may decide the veracity of the proceedings. The Court then examined the record and quashed. ¶ 13, 18-27	Petitioner	Relied on
<i>Sanjay Kumar Rai v. State of Uttar Pradesh</i> (2022) 15 SCC 720 Supreme Court	An order refusing discharge is not an interlocutory order barred by Section 397(2) Cr.P.C. The trial court is not a post office on a discharge application; it must sift the material for sufficient ground to try. The High Court may examine the merits of a revision against refusal of discharge.	Relied on by the revisionist (paras 14–17 extracted) to attack the Magistrate's stereotyped refusal of discharge. The High Court examined the papers and allowed the revision. ¶ 14-15, 18-27	Petitioner	Relied on
<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i> 2014 SCC OnLine All 8521 [80741415] Allahabad High Court (Division Bench)	A tenant/occupier has a legal right to obtain an electricity connection; the licensee is obliged to supply and cannot refuse solely for want of the owner's/landlord's consent. Clause 4.4 and Annexure 4.2 of the U.P. Electricity Supply Code, 2005 were considered.	Followed. The Court quoted the Division Bench conclusion and held that, on these facts, the revisionist cannot be said to have obtained the additional meter by fraud. ¶ 19-20, 24	Court	Followed
<i>Ravi Shanker Giri v. SDO, U.P. Power Corporation Ltd.</i> 2007 (4) AWC 3934 [193909] Allahabad High Court (Division Bench)	Considered in Seema Mansoor on whether a tenant is entitled to a connection in tenanted premises (this Court does not restate the holding).	Referred to as one of the Division Bench judgments considered in Seema Mansoor. Not independently applied. ¶ 19	Court	Referred
<i>Tanveer Azam v. State of U.P.</i> Writ Petition No. 701425 of 2013, decided 03.01.2014 Allahabad High Court (Division Bench)	Considered in Seema Mansoor on the same tenant-connection issue (this Court does not restate the holding).	Referred to as another Division Bench judgment considered in Seema Mansoor. Not independently applied. Docket as this judgment states it (701425). ¶ 19	Court	Referred
<i>N. Raghvender v. State of Andhra Pradesh</i> (2021) 18 SCC 70 Supreme Court	Section 420 IPC requires dishonest intention at the inception of the transaction. Mere breach of contract does not give rise to a Section 420 prosecution unless fraudulent or dishonest intention is shown right at the beginning; mens rea must be established (para 52 as quoted).	Paragraph 52 quoted and applied. The Court held that dishonest intention from inception was not made out: the revisionist entered possession under the rent deed and, per Seema Mansoor, was entitled to a connection. ¶ 23-24	Court	Applied